

HOUSE No. 2421

The Commonwealth of Massachusetts

PRESENTED BY:

William C. Galvin

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to patient access to information regarding breast reconstructive surgery.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>1/13/2025</i>

HOUSE No. 2421

By Representative Galvin of Canton, a petition (accompanied by bill, House, No. 2421) of William C. Galvin relative to patient information regarding reconstructive surgery. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2169 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to patient access to information regarding breast reconstructive surgery.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 70E of chapter 111 of the General Laws, as appearing in the 2008 Official
2 Edition, is hereby amended by adding the following section:

3 Every facility that provides mastectomy surgery, lymph node dissection or a lumpectomy
4 shall provide information to the patient concerning the option of reconstructive surgery following
5 such procedures, including the availability of coverage for reconstructive surgery. The
6 information shall be provided to the patient in writing and in advance of obtaining consent to the
7 surgical procedure. The information provided shall include at least the following:

8 1. A description of the various reconstructive options and the advantages and
9 disadvantages of each;

10 2. A description of any required health coverage benefits related to reconstructive
11 surgery under Federal and State law;

12 3. A description of how a patient may access reconstructive care, including the
13 potential of transferring care to a facility that provides reconstructive care or choosing to pursue
14 reconstruction after completion of breast cancer surgery and chemo/radiotherapy if warranted.